

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KHALIL WILLIAMS,

Index No.

SUMMONS

Plaintiff,

- against -

**THE CITY OF NEW YORK, DETECTIVE RALPH BURCH
SHIELD #673 and P.O. BRIAN MCGOVERN, SHIELD #10806,**

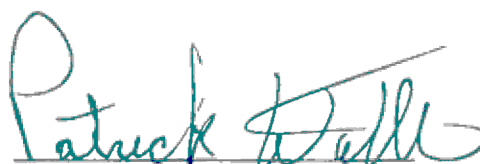
Defendants.
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Plaintiff designated Bronx County as the place of trial. Venue is based on the Plaintiff's residence in Bronx County.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 9, 2020



PATRICK A.H. WATTS, Esq.
Attorney for Plaintiff
Khalil Williams
878 Melrose Avenue
Bronx, New York 10451
(718) 681-0900

Defendants' addresses:

Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

Detective RALPH BURCH, shield No. 10806

P.O. BRIAN MCGOVERN, Shield #673
830 Washington Ave.
Bronx, NY, 10451-4604

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KHALIL WILLIAMS,

Index. No.

VERIFIED COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK, DETECTIVE RALPH BURCH
SHIELD #673 and P.O. BRIAN MCGOVERN, SHIELD #10806,

Defendants.
-----X

Plaintiff by his attorney, PATRICK A.H. WATTS, Esq, as and for his complaint, alleges and shows as follows:

FIRST CAUSE OF ACTION
AGAINST DEFENDANTS THE CITY OF NEW YORK, DETECTIVE RALPH
BURCH SHIELD #673 and P.O. BRIAN MCGOVERN, SHIELD #10806
(New York State claim for malicious prosecution)

1. Plaintiff, KHALIL WILLIAMS (hereinafter "Plaintiff") is a resident of Bronx County and a United States citizen.
2. At all of the times hereinafter mentioned, Defendant, CITY OF NEW YORK, was and still is a municipal corporation, duly organized, existing under and by virtue of the laws of the State of New York.
3. Prior to the commencement of this action and within 90 days following the dismissal of all charges against the Plaintiff on September 25, 2019, the Plaintiff on the 17th day of October 2019, and within the time provided by law, served a **Notice of Claim with intention to sue in writing**, upon the Comptroller of the City of New York, of his intention to sue by

commencing an action against Defendant, **CITY OF NEW YORK**, for damages for State claim for Malicious Prosecution and Federal claims for unlawful stop and frisk, false arrest and imprisonment, malicious prosecution, denial of the right to a fair trial, negligent hiring, training and supervision and failure to intervene.

4. Thereafter, the comptroller of the City of New York required the Plaintiff herein to appear at the law offices of Colon & Peguero, LLP, 575 Eighth Avenue, Suite 1808, New York, New York 10018 and to submit to an oral examination (to be conducted on behalf of Defendant, **CITY OF NEW YORK**), and that the Plaintiff did so appear on the 27th day of February 2020 and answered any questions asked of him.
5. This action was not commenced until after thirty days had elapsed after presentation of the said **Notice of Claim With Intention To Sue**, in writing, upon the Comptroller of the City of New York, who accepted same on behalf of Defendant, **CITY OF NEW YORK**, and after the Comptroller of the City of New York and Defendant, **CITY OF NEW YORK**, had neglected or refused to make an adjustment or payment of said claims within the aforementioned thirty (30) days and not until the claimant, the Plaintiff herein, was examined in an oral examination as hereinbefore set forth in the preceding paragraph conducted on behalf of Defendant, **CITY OF NEW YORK**.
6. The action herein was commenced on the claims herein for malicious prosecution within one (1) year and ninety (90) days of the dismissal of all charges contained within the indictment date of the incident herein, to wit, September 25, 2019, and as such, said action has been commenced within the time prescribed by law.
7. All times hereinafter mentioned, Defendants, Detective **RALPH BURCH** (hereinafter "**DETECTIVE BURCH**") shield No. 673 and police officer **BRIAN MCGOVERN**,

(hereinafter "**OFFICER MCGOVERN**") shield No.10806, were members of the Police Department of the City of New York, and as such, agents, servants and/or employees of Defendant, **CITY OF NEW YORK**.

8. All of the times hereinafter mentioned, the aforementioned Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** were acting during their course of employment with, for the business uses and purposes of, and within their scope of employment with the Police Department of the City of New York and of Defendant, **CITY OF NEW YORK**.
9. All of the times hereinafter mentioned, the aforementioned Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
10. On the 29th day of August 2017, Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** and other police officers (names unknown) stopped the Plaintiff and subjected him to a frisk without having reasonable suspicion to believe that the Plaintiff had committed a crime. The Defendants did not recover any contraband from the Plaintiff's person.
11. While the plaintiff was being detained, Defendant **DETECTIVE BURCH** allegedly found a .357caliber revolver inside of a Chevrolet Silverado pickup truck. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** placed the Plaintiff under arrest and charged him with criminal possession of a weapon in the second degree even though they did not have probable cause to believe that he possessed the aforementioned revolver.
12. On the 30th day of August 2017, Defendant **DETECTIVE BURCH** falsely executed a felony criminal complaint (Docket No. 2017BX034403) against the Plaintiff in the Bronx

County Criminal Court and charged him with the offenses of: Criminal Possession of a Weapon in the third degree (Penal Law § 265.02[1]), Criminal Possession of a Firearm (Penal Law 265.01-b[1]) and Criminal Possession of a Weapon in the fourth degree (Penal Law §265.01[2]).

13. Defendant **OFFICER MCGOVERN** falsely alleged in the Criminal Complaint that on or about August 29, 2017 at approximately 6:52 p.m., in front of 1000 Brook Avenue, Bronx, New York, he observed the Plaintiff to have in his custody and control, under the front passenger seat of a white Chevrolet Silverado pickup truck a .357 caliber revolver.
14. On the 29th day of August 2017, Plaintiff was unlawfully incarcerated (imprisoned) and deprived of his liberty and freedom (with regards to the aforementioned offenses) until his release.
15. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York of failing to tell the truth to the Bronx District Attorney's Office or to the Court at pretrial suppression hearings in that they testified falsely.
16. The Defendants jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of the aforementioned criminal proceeding was malicious and begun in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the aforesaid malicious prosecution of the Plaintiff by Defendant, **CITY OF NEW YORK**, its agents, servants and/or employees, the Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.
19. The amount of damages sought in this cause of action exceeds the jurisdictional limits of all lower courts, which otherwise have jurisdiction.

SECOND CAUSE OF ACTION
AGAINST DEFENDANTS DETECTIVE BURCH AND OFFICER MCGOVERN
(42 U.S.C. § 1983 based on unlawful stop and frisk)

20. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “22” with the same force and effect as if the same were fully set forth herein.
21. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** unlawfully stopped the Plaintiff and subjected him to an unlawful frisk without having reasonable suspicion to do so.
22. By virtue of the aforementioned acts by Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN**, Plaintiff was deprived of his rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

23. As a result of the foregoing, Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.
24. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are sued in their individual and official capacities.
25. The plaintiff seeks damages, both compensatory and punitive, an award of costs, pre-judgment and post-judgment interest and attorney's fees pursuant to 42 U.S.C. § 1988 and such further relief as this Court deems equitable and just.
26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

THIRD CAUSE OF ACTION
AGAINST DEFENDANTS DETECTIVE BURCH AND OFFICER MCGOVERN
(42 U.S.C. § 1983 based on False Arrest/Imprisonment)

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "29" with the same force and effect as if the same were fully set forth herein.
28. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** without having probable cause to do so, falsely arrested the Plaintiff and intentionally confined him without his consent and without justification.
29. By virtue of the aforementioned acts by Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN**, Plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States and Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

30. As a result of the foregoing, Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.
31. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are sued in their individual and official capacities.
32. The plaintiff seeks damages, both compensatory and punitive, an award of cost of Plaintiff's suit, pre-judgment and post-judgment interest and attorney's fees pursuant to 42 U.S.C. § 1988 and such further relief as this Court deems equitable and just.
33. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

FOURTH CAUSE OF ACTION
AGAINST DEFENDANTS DETECTIVE BURCH AND OFFICER MCGOVERN
(42 U.S.C. § 1983 based on denial of the right to a fair trial)

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "36" with the same force and effect as if the same were fully set forth herein.
35. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** created false information and knowing that the false information was likely to influence a jury's decision, provided the false information to the Bronx County District Attorney's Office and the Plaintiff suffered a deprivation of his liberty as a result.
36. By virtue of the aforementioned acts by Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN**, Plaintiff was deprived of his civil rights guaranteed under the

Constitution of the United States and Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

37. As a result of the foregoing, Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.

38. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are sued in their individual and official capacities.

39. That the plaintiff seeks damages, both compensatory and punitive, an award of cost of Plaintiff's suit, pre-judgment and post-judgment interest and attorney's fees pursuant to 42 U.S.C. § 1988 and such further relief as this Court deems equitable and just.

40. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS DETECTIVE BURCH AND OFFICER MCGOVERN
(42 U.S.C. § 1983 based on malicious prosecution)

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "43" with the same force and effect as if the same were fully set forth herein.

42. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** commenced criminal proceeding against the Plaintiff with malice and without probable cause. And as a result, the Plaintiff was deprived of his liberty in violation of his Fourth and Fourteenth Amendment rights. The aforementioned criminal proceeding was subsequently terminated in the Plaintiff's favor.

43. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the Constitution of the United States and Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

44. As a result of the foregoing, Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.

45. Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** are sued in their individual and official capacities.

46. The plaintiff seeks damages, both compensatory and punitive, an award of cost of Plaintiff's suit, pre-judgment and post-judgment interest and attorney's fees pursuant to 42 U.S.C. § 1988 and such further relief as this Court deems equitable and just.

47. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

SIXTH CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK
(42 U.S.C. § 1983 based on negligent hiring, training and supervision)

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "50" with the same force and effect as if the same were fully set forth herein.

49. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, was not acting in a suspicious manner and has not committed a crime, that its police officers should only effectuate a stop and frisk based on reasonable suspicion and make an arrest based on probable cause.

50. Defendant **CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to stop and frisk individuals where reasonable suspicion is lacking nor arrest individuals such as the Plaintiff here where probable cause is lacking.

51. Defendant **CITY OF NEW YORK** is negligent due to its failure to implement a policy within its Police Department or actively enforce the law, if any of the following are lacking:

1. Reasonable suspicion must be present before an individual as the Plaintiff herein can be stopped and frisked.
2. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
3. The foregoing acts, omissions and systemic failures are customs and policies of Defendant **CITY OF NEW YORK** which caused Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** to illegally stop and frisk the Plaintiff, falsely arrest and imprison him, maliciously prosecute him and deny him

a fair trial under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

52. Furthermore, prior to August 29, 2017, Defendant **CITY OF NEW YORK**, and the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of Defendant **CITY OF NEW YORK** to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by Defendant **CITY OF NEW YORK**. It was the policy and/or custom of Defendant **CITY OF NEW YORK** to inadequately supervise and train its police officers, managers and employees including Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** thereby failing to adequately discourage further constitutional violations on the part of their agents, officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The New York City Police Department did not require appropriate in-service training or re-training of officers who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

53. Prior to August 29, 2017, Defendant **CITY OF NEW YORK** knew or should have known that Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** would unlawfully stop and frisk innocent individuals without having reasonable suspicion and unlawfully arrest innocent individuals without having probable cause to do so.

54. Defendant **CITY OF NEW YORK** negligently hired and trained Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** negligently failed to supervise or

discharge them from their employ, thereby causing and contributing to the above stated incident.

55. As a result of the foregoing, Plaintiff was subjected to indignity, humiliation, scorn, ridicule, shock, emotional distress, mental anguish, loss of liberty, loss of enjoyment of life and was prevented from attending to his usual business and was injured in his good name and reputation in the community and incurred legal fees in an effort to defend himself from said malicious prosecution.

56. Plaintiff seeks damages, both compensatory and punitive, an award of cost of Plaintiff's suit, pre-judgment and post-judgment interest and attorney's fees pursuant to 42 U.S.C. § 1988 and such further relief as this Court deems equitable and just.

57. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff demands Judgment against the Defendants **CITY OF NEW YORK, DETECTIVE BURCH** and **OFFICER MCGOVERN** on the first cause of action, in a sum to be set by a jury upon the trial of the action herein; Plaintiff demands judgment against Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** on the second cause of action, in a sum to be set by a jury upon the trial of the action herein; Plaintiff demands judgment against Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** on the third cause of action, in a sum to be set by a jury upon the trial of the action herein; Plaintiff demands judgment against Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** on the fourth cause of action, in a sum to be set by a jury upon the trial of the action herein; Plaintiff demands judgment against Defendants **DETECTIVE BURCH** and **OFFICER MCGOVERN** on the fifth cause of action, in a sum to be set by a

jury upon the trial of the action herein and Plaintiff demands judgment against Defendant
CITY OF NEW YORK on the sixth cause of action, in a sum to be set by a jury upon the
trial of the action herein together with the costs and disbursement of this action.

Dated: Bronx, New York
July 9, 2020



PATRICK A.H. WATTS, Esq.
Attorney for Plaintiff
Khalil Williams
878 Melrose Avenue
Bronx, New York 10451
(718) 681-0900

VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF BRONX)

I, KAHLIL WILLIAMS, am the Plaintiff in the within action.

I have read the foregoing Summons and Complaint and know the contents thereof; the same is true to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I swear that the foregoing statements are true, under the penalties of perjury.

Dated: Brooklyn, New York

July 9, 2020

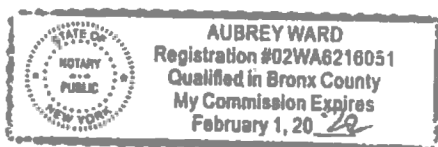
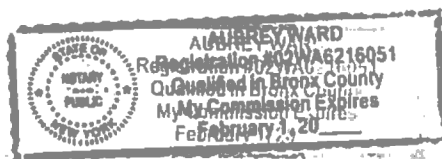
July 9, 2020
Khalil Williams
Khalil Williams

Sworn to before me on this 9th
day of July 2020

day of July 2020



Notary



SUPREME COURT OF THE STATE OF NEW YORK
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BURCH SHIELD #673 and P.O. BRIAN MCGOVERN
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Defendant.

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SUMMONS AND COMPLAINT

PATRICK A.H. WATTS, Esq.
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